

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

SUMMONS

KAREEM ALICEA, ABRAHAM KONAN-IDOHOU, and
TERRENCE EXETER,

Index No.:

Plaintiffs,

The Basis of Venue is:
Location of Incident

-against-

Plaintiff designates Kings
County as the place of trial.

THE CITY OF NEW YORK, DETECTIVE SALVATORE
RIZZO, Tax No. 955390, POLICE OFFICER TOMAS
GARCIA, Tax No 960578, DETECTIVE SPECIALIST
JOSEPH BAUTISTA, Tax No. 954534, SERGEANT
SAIDUL ISLAM, Tax No. 936798, and POLICE
OFFICERS JOHN DOES #s 1-10 (names and numbers of
whom are unknown at present),

Defendants.

----- X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 3, 2024

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiffs
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE SALVATORE RIZZO, Tax No. 955390, Criminal; Intelligence Section
POLICE OFFICER TOMAS GARCIA, Tax No. 960578, 67th Precinct
DETECTIVE SPECIALIST JOSEPH BAUTISTA, Tax No. 954534, Crime Control Strategies
SERGEANT SAIDUL ISLAM, Tax No. 936798, Strategic Response Group 3, Brooklyn

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KAREEM ALICEA, ABRAHAM KONAN-IDOHOU, and
TERRENCE EXETER,

Plaintiffs,

-against-

THE CITY OF NEW YORK, DETECTIVE SALVATORE
RIZZO, Tax No. 955390, POLICE OFFICER TOMAS
GARCIA, Tax No 960578, DETECTIVE SPECIALIST
JOSEPH BAUTISTA, Tax No. 954534, SERGEANT
SAIDUL ISLAM, Tax No. 936798, and POLICE
OFFICERS JOHN DOES #s 1-10 (names and numbers of
whom are unknown at present),

Defendants.

----- X

Plaintiffs KAREEM ALICEA, ABRAHAM KONAN-IDOHOU, and TERRENCE
EXETER, by their attorneys, Jacobs & Hazan, PLLC, as and for their Verified Complaint herein
allege, upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiffs allege that on September 3, 2021, at approximately 10:00 pm, plaintiffs were lawfully present as passengers in a vehicle in the vicinity of 627 East 96th Street, Brooklyn, New York at which time defendants unlawfully stopped, questioned, frisked, searched, handcuffed, falsely arrested, maliciously prosecuted, denied plaintiffs their right to due process pursuant to the Fifth Amendment to the United States Constitution, and subjected plaintiffs to the use of excessive force, without probable cause or legal justification. The defendant police officers acted, in part pursuant to an unconstitutional policy and practice that defendant City of New York encourages NYPD officers to follow. At no time relevant herein did plaintiffs commit a crime or violate the law, nor did the officers possess objective facts to establish probable cause to believe plaintiffs committed a crime or violated the law. The officers transported plaintiffs against their will to the 67th Precinct where they were unlawfully searched, fingerprinted, photographed, interrogated, and detained in a filthy

holding cell for many hours. The defendant police officers provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence to purportedly justify why they arrested plaintiffs and charged them with committing crimes. The false, misleading, and incomplete evidence formed the basis for a criminal prosecution being initiated against plaintiffs without probable cause. Plaintiffs were transported to Kings County Central Booking whereat the unlawful detention continued until they were each arraigned in Kings County Criminal Court, on September 5, 2021, and released on their own recognizance. Plaintiffs were each charged with crimes they did not commit and that the police officers lacked probable cause to accuse them of committing, including but not limited to Criminal Possession of a Weapon. Plaintiffs returned to Court on approximately 5 occasions and endured a 7 month long criminal felony prosecution before the Court granted the DA's Office's motion to dismiss the charges on March 25, 2022, and all charges were dismissed and sealed in their entirety "In the Interest/ Furtherance of Justice." All charges brought against plaintiffs were dismissed and sealed in their entirety and terminated in plaintiffs' favor. At no time relevant herein did plaintiffs commit a crime, nor did the defendant police officers possess any objective factual basis to establish probable cause to believe plaintiffs committed a crime or violated the law. Those officers that did not physically touch plaintiffs but observed their fellow officers violating plaintiffs' rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiffs' rights under New York State law and the United States Constitution are liable to plaintiffs for their failure to intervene. Plaintiffs were deprived of their Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, interrogated, falsely arrested, denied plaintiffs the right to due process/ right to a fair trial, and subjected plaintiffs to the use of excessive force, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff KAREEM ALICEA is a resident of the state of New York.
3. Plaintiff ABRAHAM KONAN-IDOHOU is a resident of the state of New York.
4. Plaintiff TERRENCE EXETER is a resident of the state of New York.
5. Defendant DETECTIVE SALVATORE RIZZO, Tax No. 955390, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
6. Defendant DETECTIVE SALVATORE RIZZO, Tax No. 955390, was at all times relevant herein, assigned to the 67th Precinct and is presently assigned to Criminal Intelligence Section.
7. Defendant DETECTIVE SALVATORE RIZZO, Tax No. 955390, is being sued in his individual and official capacity.

8. Defendant POLICE OFFICER TOMAS GARCIA, Tax No. 960578, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

9. Defendant POLICE OFFICER TOMAS GARCIA, Tax No. 960578, was at all times relevant herein, assigned to the 67th Precinct.

10. Defendant POLICE OFFICER TOMAS GARCIA, Tax No. 960578, is being sued in his individual and official capacity.

11. Defendant DETECTIVE SPECIALIST JOSEPH BAUTISTA, Tax No. 954534, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

12. Defendant DETECTIVE SPECIALIST JOSEPH BAUTISTA, Tax No. 954534, was at all times relevant herein, assigned to the 67th Precinct and is presently assigned to the Crime Control Strategies command.

13. Defendant DETECTIVE SPECIALIST JOSEPH BAUTISTA, Tax No. 954534, is being sued in his individual and official capacity.

14. Defendant SERGEANT SAIDUL ISLAM, Tax No. 936798, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

15. Defendant SERGEANT SAIDUL ISLAM, Tax No. 936798, was at all times relevant herein, assigned to the 67th Precinct and is presently assigned to the Strategic Response Group 3, Brooklyn command.

16. Defendant SERGEANT SAIDUL ISLAM, Tax No. 936798, is being sued in his individual and official capacity.

17. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

18. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

19. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

20. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

21. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. By way of background, on the evening of September 3, 2021, plaintiffs Abraham Konan-Idohou, Terrence Exeter and Kareem Alicea attended a Labor day weekend barbeque at the home of an extended family member of Terrence Exeter.

24. Plaintiff Terrence Exeter's brother drove plaintiffs to the family barbeque.

25. Plaintiffs left the barbeque at approximately 10:00 pm on September 3, 2021, and Plaintiff Terrence Exeter's brother agreed to drive them home.

26. The vehicle plaintiff Terrence Exeter's brother was driving that evening was a rental vehicle.

27. Plaintiff Terrence Exeter's brother lawfully drove the vehicle from the family barbeque to his home located at 627 East 96th Street, Brooklyn, New York.

28. Plaintiff Kareem Alicea was seated in the front passenger seat of the vehicle, Plaintiff Abraham Konan-Idohou was seated in the back seat behind the front passenger, and Plaintiff Terrence Exeter was seated in the back seat behind the driver.

29. Plaintiff Terrence Exeter's brother parked the vehicle in front of his home because he needed to run inside and use the restroom quickly.

30. On September 3, 2021, at approximately 11:00 pm plaintiff Terrence Exeter's brother exited the vehicle to run into his home quickly, at which time defendants stopped plaintiff Terrence Exeter's brother and told him to get back in the vehicle.

31. Plaintiff Terrence Exeter's brother complied and told the defendant officers that he was just running into his home to use the restroom quickly.

32. He also told the defendants that the vehicle was a rental vehicle.

33. The defendants then proceeded to pull plaintiffs out of the vehicle and unlawfully searched them, without probable cause or legal justification.

34. The defendants did not recover any illegal drugs, weapons, or contraband from plaintiffs' possession, custody, or control.

35. The defendant police officers proceeded to unlawfully handcuff and falsely arrest plaintiffs, without probable cause or legal justification.

36. The defendant officers told plaintiffs that they were arresting them to conduct an investigation, but defendants would not tell them what they were investigating or what crime they committed that gave them a lawful basis to arrest them.

37. Plaintiff Terrence Exeter's brother's mother came out of their home and asked defendants why they were arresting everyone in the vehicle.

38. The defendants told her that they were arresting everyone because the vehicle was double parked and had unlawful tints.

39. The defendants told her that plaintiffs were being taken to the precinct for investigation, pursuant to a car stop.

40. The basis provided by the defendants for arresting plaintiffs was not a legal basis to arrest them or to seize the vehicle.

41. Importantly, the defendant officers never provided any additional basis for arresting plaintiffs.

42. At no time relevant herein did plaintiffs commit a crime or violate the law in any manner, nor did the defendant police officers possess objective facts to establish probable cause to believe they committed a crime.

43. Although defendants lacked probable cause or any legal basis to arrest plaintiffs and /or seize the vehicle, the defendant officers arrested everyone in the vehicle and also seized the vehicle and drove it to the 67th Precinct.

44. The officers transported plaintiffs to the 67th Precinct against their will whereat defendants unlawfully searched, interrogated, fingerprinted, and photographed them.

45. Plaintiffs were detained in a filthy holding cell for many hours.

46. Plaintiffs were transported to Kings County Central Booking whereat plaintiffs' unlawful detention continued.

47. At no time relevant herein did either plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner

48. On September 5, 2021, at approximately 11:00 pm, approximately 48 hours (2 days) after plaintiff Kareem Alicea was initially arrested by the officers, he was arraigned in Kings County Criminal Court and charged with felony offenses he did not commit and that the defendants lacked probable cause to accuse him of committing, including but not limited to Criminal Possession of a Weapon in the Second Degree.

49. On September 5, 2021, at approximately 12:00pm, approximately 37 hours after plaintiff Abraham Konan-Idohou was initially arrested by the officers, he was arraigned in Kings County Criminal Court and charged with crimes he did not commit and that the defendant officers lacked probable cause to accuse him of committing, including felony offenses such as Criminal Possession of a Weapon in the Second Degree.

50. On September 5, 2021, at approximately 9:00 pm, approximately 46 hours after plaintiff Terrence Exeter was initially arrested by the officers, he was arraigned in Kings County Criminal Court and charged with crimes he did not commit and that the officers lacked probable cause to accuse him of committing, including felony offenses such as Criminal Possession of a Weapon in the Second Degree.

51. Defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete evidence and allegations about the evidence they allegedly recovered that purportedly formed defendants' basis for arresting plaintiffs and charging them with crimes.

52. Specifically, the defendant officers alleged that they recovered a firearm hidden underneath the driver's seat of the vehicle.

53. The defendants, however, did not inform the District Attorney's Office that they claim they recovered the firearm from the vehicle at the precinct, after plaintiffs were arrested, and after the defendants seized the vehicle, when defendants conducted what they called an "inventory search" of the vehicle at the precinct after the vehicle's occupants were arrested.

54. Defendants did not provide a legal basis for arresting plaintiffs at the location and time of their arrest, based upon objective evidence the officers purportedly possessed at the time of plaintiffs' arrest, that allegedly established probable cause to arrest plaintiffs.

55. The defendants misled the DA's office to believe they recovered a firearm before plaintiffs were placed under arrest.

56. The defendants lacked probable cause to arrest plaintiffs at the time of their arrests because the officers did not possess any facts to establish probable cause to believe they committed a crime or violated the law.

57. Defendants also failed to advise the DA's Office that the vehicle plaintiffs were passengers in prior to plaintiffs' arrest was a rental vehicle.

58. Upon information and belief, defendants fabricated allegations that they recovered a firearm from the vehicle when they searched the vehicle at the precinct.

59. The defendants also did not inform the DA's Office that the search of the vehicle at the precinct was not a legal inventory search, that inventory of the property located inside of the vehicle was not recorded, and the vehicle was not impounded.

60. The vehicle was unlawfully seized and searched by defendants.

61. The officers alleged, without any factual basis whatsoever, plaintiffs "acted in concert" with the other occupants of the vehicle to possess the firearm that defendants allegedly recovered from underneath the driver's seat of the rental vehicle.

62. Importantly, since the vehicle was a rental vehicle, the officers lacked any basis to allege that anyone in the vehicle had any knowledge that there was a firearm hidden under the driver's seat of the vehicle.

63. On September 5, 2021, at 11:00 pm plaintiff Kareem Alicea was released from custody on his own recognizance at arraignment.

64. On September 5, 2021, at 12:00 pm plaintiff Abraham Konan-Idohou was released from custody on his own recognizance at arraignment

65. On September 5, 2021, at 9:00 pm plaintiff Terrence Exeter was released from custody on his own recognizance at arraignment

66. Plaintiffs returned to Court on approximately 5 occasions and endured a 7 month long criminal felony prosecution before the Court granted the DA's Office's motion to dismiss the charges on March 25, 2022, and all charges were dismissed and sealed in their entirety "In the Interest/ Furtherance of Justice."

67. The criminal charges terminated in plaintiffs' favor.

68. Plaintiff Kareem Alicea suffered injuries to his wrists during this incident because the officers unlawfully handcuffed him in an excessively tight manner and refused to loosen the handcuffs.

69. Both of Plaintiff Kareem Alicea's wrists were injured from the tight handcuffs. He experienced pain and numbness in his wrists for approximately two weeks after the incident.

70. Plaintiff Abraham Konan-Idohou suffered injuries to his wrists and back as a result of the excessive force used against him by the officers in this case during his arrest when they pulled him out of the vehicle and unlawfully handcuffed him in an excessively tight manner.

71. Both of Plaintiff Abraham Konan-Idohou's wrists were injured from the tight handcuffs.

72. Plaintiff Abraham Konan-Idohou experienced pain and numbness in his wrists for approximately two weeks after the incident.

73. Furthermore, Plaintiff Abraham Konan-Idohou continues to suffer from intermittent pain in his back which began when the officers injured his back as they pulled him from the vehicle.

74. The defendant officers handcuffed plaintiff Terrence Exeter using excessive force.

75. As the defendants were handcuffing him, plaintiff Terrence Exeter told them to be careful because he had a metal plate in his arm.

76. Plaintiff Terrence Exeter asked the defendant officers to loosen the handcuffs because they were hurting his arm.

77. Defendants ignored plaintiff Terrence Exeter's request and plaintiff Terrence Exeter was handcuffed in a manner that caused him to suffer extreme pain to his arm while he remained in handcuffs.

78. Additionally, plaintiff Terrence Exeter suffered injuries to his wrists as a result of the excessive force used against him by the defendant officers in this case during his arrest when they pulled him out of the vehicle and unlawfully handcuffed him in an excessively tight manner.

79. Both of plaintiff Terrence Exeter wrists were injured from the tight handcuffs.

80. Plaintiff Terrence Exeter experienced pain and numbness in his wrists for approximately two weeks after the incident.

81. The incident also affected plaintiff Terrence Exeter emotionally.

82. When plaintiff Terrence Exeter finds himself in a situation that causes him to suffer anxiety, the anxiety causes him to vomit.

83. Plaintiff Terrence Exeter was experiencing severe anxiety when defendants pulled him out of the vehicle and the high levels of anxiety caused him to vomit several times while the defendant officers were attempting to search and handcuff him.

84. The incident also affected Plaintiffs emotionally, and the false arrest and malicious prosecution took an emotional toll on them.

85. When Plaintiff Kareem Alicea talks about the incident it brings him to tears because he does not violate the law or ever commit crimes.

86. Plaintiff Kareem Alicea didn't know why he was arrested and still doesn't understand why he was arrested.

87. Anytime Plaintiffs have to interact with a police officer they now become extremely nervous, scared, and filled with anxiety.

88. Plaintiffs never thought something like this would ever happen to him as long as he obeyed the law and did not commit any crimes.

89. Realizing the power police officers have to take away an individual's freedom without any legal basis was frightening to plaintiffs and they constantly are afraid that something like this will happen again, and their freedom will be placed in the hands of a Court and possibly a jury of strangers if officers do this to them again.

90. Defendant City of New York and the New York City Police Department have an unconstitutional policy and practice of encouraging NYPD officers (1) to stop vehicles driven by individuals the officers believe fit the profile of individuals who have a higher than average likelihood of possessing illegal drugs or weapons in their vehicle, (2) to charge the vehicle's occupants with committing some offense, usually a minor traffic infraction such as unlawful tints, failing to signal while changing lanes, or failure to wear a seatbelt; (3) arrest the vehicle's occupants for committing the minor violation instead of issuing the individuals' a ticket; (4) seize the vehicle, and transport it to the precinct pursuant to the arrests of the vehicle's occupants; and (5) to search the vehicle thoroughly at the precinct for illegal weapons and drugs and classify the search of the vehicle as an "inventory search" so that the unlawful search of the vehicle appears lawful.

91. The individuals primarily stopped and arrested pursuant to this unlawful policy are primarily African American or Latino males because the officers' profile of individuals who the officers believe have a higher-than-average likelihood of possessing illegal drugs or weapons in their vehicle is primarily and unlawfully based upon the individuals' sex, race, and ethnic background.

92. The City of New York and NYPD encourage this unconstitutional policy and practice which violates the Fourth and Fourteenth Amendments to the United States Constitution because policy makers within the NYPD believe that the unlawful policy and practice successfully provides a method for seizing unlawful firearms and removing them from the streets of New York.

93. This unconstitutional policy and practice of the NYPD was the proximate cause of plaintiffs' unlawful seizures, false arrests, and malicious prosecutions.

94. Plaintiffs are all African American or Latino males.

95. Defendants unlawfully stopped, searched, and seized plaintiffs who were passengers in a vehicle, without having a legal basis to stop the vehicle or to search and detain plaintiffs.

96. Defendants and intentionally unlawfully approached, stopped, questioned, frisked, searched, and falsely arrested plaintiffs because they wanted to seize the vehicle and search the vehicle for weapons, without a warrant, by classifying the search as an “inventory search” that was conducted after the officers arrested everyone in the vehicle.

97. In fact, the defendant officers in this case fabricated minor allegations regarding why they stopped the vehicle and arrested the occupants of the vehicle, because the NYPD incorrectly encourages defendants to use minor traffic violations as a purported legal basis to seize a vehicle and conduct an “inventory search” of a vehicle at the precinct.

98. Over the past 2-3 years there has been a sudden trend throughout the NYPD wherein officers are arresting individuals who are stopped in vehicles for very minor offenses such as failure to wear a seatbelt, or tinted windows, or double parking, and thereafter the officers seize the vehicle after they arrest its occupants and conduct a very thorough search of the vehicle at the precinct.

99. The officers do this to get around warrant requirements, because the NYPD incorrectly teaches them that this type of search of a vehicle pursuant to an arrest is considered a legal “inventory search” of the vehicle the officers seize when they arrest its occupants.

100. However, in these instances it is clear that the vehicles are only being seized to conduct a search and to evade the warrant requirements, and the officers are not actually conducting an “inventory search” of the vehicle at the precinct in accordance with the purposes of a legal “inventory search” of a vehicle that have been set forth by the United States Supreme Court, the Second Circuit Court of Appeals and New York State Appellate Courts.

101. The Defendants conduct in this case was consistent with the conduct of NYPD officers throughout the City of New York over the past 2-3 years wherein the officers search underneath seats, inside of the walls of the vehicle, underneath the vehicle’s floorboards, and aggressively search the vehicle in a manner that is not an “inventory search” which is supposed to be conducted for the sole purpose of documenting the property left in a vehicle that was seized and is being impounded by the police.

102. The defendant officers did not take an inventory of the property in the vehicle or impound the vehicle.

103. . This type of search of a vehicle without a search warrant is blatantly illegal, but officers throughout the NYPD, including defendants in this case, openly engage in this unlawful conduct because defendant City of New York and the NYPD encourage such conduct and has an unconstitutional policy and practice wherein officers are encouraged to arrest individuals for minor traffic offenses and then conduct a thorough warrantless search of the vehicle which should be classified as an “inventory search.”

104. The defendants followed this unconstitutional policy and practice when they falsely arrested plaintiffs and unlawfully seized and searched the vehicle they were in.

105. At no time relevant herein did the defendant officers provide a legal basis for arresting plaintiffs at the scene of their arrest.

106. The only explanation provided by defendants for why they arrested plaintiffs was because the vehicle was allegedly double parked and had dark tints.

107. Those are not valid legal basis to arrest passengers of a vehicle and did not provide probable cause for the officers to arrest plaintiffs.

108. . The defendant officers told plaintiffs they were being arrested for “investigation,” but they were never told what the officers were investigating.

109. Importantly, it is also noted in the DA’s Complaint Room Screening Sheet and on the notes taken by the Judge at arraignment on the Court Action Sheets that the officers did not ever test the tints on the windows of the vehicle to determine whether they were legal tints.

110. Therefore, even the officers’ basis for allegedly arresting the occupants of the vehicle was not based upon any objective facts since the officers did not possess any evidence to suggest the vehicle’s tints were unlawful.

111. Even based upon the officers’ own allegations defendants lacked probable cause to arrest plaintiffs at the scene of the car stop, as a matter of law.

112. Additionally, the officers unlawfully seized and searched the vehicle and classified the unlawful search of the vehicle as an “inventory search.”

113. At no time relevant herein, did the defendant officers ever take an inventory of the property located in the vehicle as is required when an “inventory search” is conducted by police officers.

114. The search and seizure of the vehicle was not lawful, and the defendant officers did not possess any evidence to suggest that plaintiffs had possession, custody, or control over the weapon that the officers falsely claim they recovered from the vehicle at the precinct.

115. Those officers that did not physically touch plaintiffs but observed their fellow officers violating plaintiffs' rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiffs' rights under New York State law and the United States Constitution are liable to plaintiffs for their failure to intervene.

116. Plaintiffs were deprived of their Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, interrogated, falsely arrested, maliciously prosecuted, and denied plaintiffs the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

117. At no time relevant herein did either plaintiffs commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiffs of committing a crime or violating the law in any manner.

118. Defendants falsely arrested and maliciously prosecuted plaintiffs, without probable cause or legal justification.

119. Defendants violated plaintiffs' right to due process when they provided the District Attorney's Office with false, misleading, and incomplete evidence which formed the basis for initiating the criminal prosecution against plaintiff.

120. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

121. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiffs to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth Amendment and Fourteenth Amendment Rights

122. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 121 with the same force and effect as if more fully set forth at length herein.

123. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiffs to be unlawfully stopped, searched, frisked, questioned, seized, denied due process, falsely arrested and falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiffs' right to be free from an

unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

124. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 123 with the same force and effect as if more fully set forth at length herein.

125. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

126. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

128. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

129. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 128 with the same force and effect as if more fully set forth at length herein.

130. The illegal approach, pursuit, stop and search inside plaintiffs' pockets and underneath his clothing, employed by defendants herein, and terminated plaintiffs' freedom of movement through means intentionally applied.

131. Defendants lacked probable cause to search plaintiffs.

132. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

133. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

134. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

135. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 134 with the same force and effect as if more fully set forth at length herein.

136. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

137. Defendants commenced and continued criminal proceedings against plaintiffs.

138. There was actual malice and an absence of probable cause for the criminal proceedings against plaintiffs and for each of the charges for which he was prosecuted.

139. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

140. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiffs' Fourth Amendment rights.

141. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION**Violation of Plaintiff's Fifth Amendment and Fourteenth
Amendment Rights
Denial of Due Process/ Right to a Fair Trial**

142. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs numbered 1 through 141 with the same force and effect as if fully set forth herein.

143. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

144. Defendants filled out false and misleading police reports and a summons and forwarded them to the Kings County Criminal Court.

145. In withholding/creating false evidence against plaintiffs, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

146. As a result of the foregoing, plaintiffs sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

147. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION**Violation of Plaintiff's Fourth And Fourteenth Amendment****Rights (Excessive Force)**

148. The plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 147 with the same force and effect as if more fully set forth at length herein.

149. The use of excessive force by defendants by securing he handcuffs on plaintiffs' wrists in an unreasonably tight manner and by using the unreasonable level of force during the arrest, described herein were objectively unreasonable physical seizures of plaintiffs in

violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

150. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

151. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 150 with the same force and effect as if more fully set forth at length herein.

152. Defendants had an affirmative duty to intervene on behalf of plaintiffs whose constitutional rights were being violated in their presence by other officers.

153. Defendants failed to intervene to prevent the unlawful conduct described herein.

154. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, he was put in fear of their safety, and he was humiliated and subject to other physical constraints.

155. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

156. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 155 with the same force and effect as if more fully set forth at length herein.

157. Plaintiffs were unlawfully stopped, questioned, frisked, searched, interrogated, falsely arrested, maliciously prosecuted, denied the right to due process, and subjected to the use of excessive force without an objective factual legal basis to seize, arrest and prosecute plaintiffs pursuant to an unconstitutional policy and practice of the NYPD that is

deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

158. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stopped, questioned, frisked, searched, interrogated, falsely arrested, maliciously prosecuted, denied the right to due process, and subjected to the use of excessive force, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

159. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully, and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

160. Defendant City of New York is liable to plaintiffs for the damages they suffered stemming from the unlawful stopped, questioned, frisked, searched, interrogated, falsely arrested, maliciously prosecuted, denied the right to due process, and subjected to the use of excessive force of plaintiffs because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stopped, questioned, frisked, searched, interrogated, falsely arrested, maliciously prosecuted, denied the right to due process, and subjected to the use of excessive force members of the public when there is no factual basis to suspect the individual has committed a crime.

161. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

162. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiffs' injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

163. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

164. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

165. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

166. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiffs and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiffs have been deprived of their rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

167. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein

JURY DEMAND

168. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs KAREEM ALICEA, ABRAHAM KONAN-IDOHOU, and TERRENCE EXETER demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiffs each recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 3, 2024

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiffs
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiffs is because plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
September 3, 2024

David Hazan

DAVID M. HAZAN